



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP
Subject: County Pocket Annexation #2
Date: October 16, 2023

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne. A related "Assigned Zoning" pursuant to Unified Development Code (UDC) Section 2.2.8 ordinance is also on the agenda.

The proposed Governing Body review schedule is as follows:

- Introduction and referral: November 13, 2023
- Public Services Committee: November 21, 2023
- Second Reading: November 27, 2023
- Public Services Committee: December 5, 2023
- Third and Final Reading: December 11, 2023

This annexation is comprised of 51 properties 100% surrounded by the City (See attached map). Of the 50 parcels, 26 are developed with residential uses, one is developed with a commercial use, and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits, development specific to the properties proposed for annexation, or identified zoning violations.

On September 20, 2023, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Tuesday, October 3, 2023. A media release was also released on September 22, 2023, identifying properties included in this County pocket annexation. Seventeen people attended this meeting. Discussion, comments, and questions primarily surrounded the annexation component, but the topics of zoning, nonconforming uses, livestock, and animals did occur. During the meeting staff provided information regarding assigned zoning and learned that some non-residential accessory uses and home-based businesses existed within the area including an animal boarding, auction house, warehousing, and shipping and receiving operations were occurring.

The existing use of any property annexed, including any livestock use, will be allowed to continue as is as a nonconforming use. Nonconforming uses may continue until they are abandoned for a period of 12-months. Residents within pockets have been encouraged to complete a Land Use Documentation form detailing the existing use of the land for documentation purposes. At the time of drafting of this memo, one property owner within the area has completed a land use documentation form which is attached. Providing a completed form is not required nor does it prohibit a property owner from making future claims that a use was pre-existing. The form is simply a tool to assist future City staff members to determine if a use was in existence at the time of annexation.

City-initiated annexations do not require an owner's signature. To initiate an annexation, the City must adopt a resolution certifying that the annexation complies with Wyoming State Statute § 15-1-402. After the City adopts this resolution, the annexation follows the typical schedule, including a public hearing and the approval of an Ordinance which annexes the land. The Governing Body adopted Resolution No. 6357 initiating this annexation on October 9, 2023.

As with any annexation, City services will be extended to service the land contained in the annexation. City utilities are already located in the vicinity. Police, fire, and sanitation services will be provided. As several parcels of land contained in this annexation area are developed, City sanitation service will need to be established and landowners have been notified of this required change. Infrastructure improvements required related to the annexation are minimal. Future development such as subdivision or new development will require on- and off-site infrastructure improvements. Existing infrastructure will remain as is upon annexation. All roads adjacent to annexed parcels are within City limits and maintained by the City.

The areas proposed for annexation are adjacent to land under City jurisdiction. Development in this area is a natural extension of the City. 100 % of the perimeter of the annexation area is contiguous to City limits.

Due to meeting the review criteria found in Wyoming Statute § 15-1-402 and the annexation conforming with the 2022 City Council goal to annex County pockets, staff recommends approval of this annexation.

Staff Recommendation:

Staff recommends the Governing Body approve the Annexation Ordinance.

Attachments:

1. Completed Land Use Documentation form (1)
2. Proposed Ordinance (includes Annexation Map as Attachment A)

Planning and Development: Land Use Registration

Submitted on	28 September 2023, 3:14PM
Receipt number	5
Related form version	4

General Information

Owner Name:	Greg yarber
Owner Street Address:	5620 Lawrence lane
Owner City:	Cheyenne
Owner State:	Wyoming
Owner Zip Code:	82009
Owner Phone:	3076300538
Owner Email:	Gegntina@yahoo.com
Street address of use to be registered:	132 Carlson street
Assessor's Parcel ID number(s)	R0014830
Description of present use on the property.	Personal storage and rent out a space to store trailer outside
Was the use established within the last 12-months?	No
Are any properties presently subject to pending review or inspection by the County in conjunction with a building or development process?	No
Please list what processes are pending review or inspection.	
Please upload any approval documents from the County Planning Office or any other agency.	
When was use was established? Approximate if necessary.	01/01/2007
Has the use discontinued at any time for a period exceeding 12-months?	No

Additional Documentation

Signature / Certification

I hereby certify that the information provided in this form is complete, true and correct to the best of my knowledge

I acknowledge that my current use may not meet current City code requirements.

I understand that legally-established uses that do not meet current City code requirements are considered 'grandfathered' and may continue provided such use is continuous.

I understand that new uses will be required to meet all City code requirements.

I understand that staff may contact me for additional information regarding this application.

Applicant Signature



[Link to signature](#)

Please enter an email address for an email receipt.

gegntina@yahoo.com

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN NORTHWEST CHEYENNE GENERALLY LOCATED NORTH OF DELL RANGE BOULEVARD AND WEST OF POWDERHOUSE ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That the City of Cheyenne has initiated this annexation in compliance with Wyo. Stat. § 15-1-404, and has adopted a Resolution certifying that the area to be annexed complies with the requirements of Wyo. Stat. § 15-1-402 (said resolution being adopted on October 9, 2023, as Resolution #6357);
- (b) That an accurate legal description of said land is as follows:

Various tracts of land situate in northwest Cheyenne more particularly described as follows:

Area #1

A PARCEL OF LAND SITUATE IN A PORTION OF SW¹/₄ NW¹/₄, SECTION 17, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST CORNER OF ASPEN CREEK SUBDIVISION; THENCE N. 89°38' 53" W. ALONG THE NORTH LINE OF SAID ASPEN CREEK A DISTANCE OF 912.31 FEET TO THE NORTHWEST CORNER OF SAID ASPEN CREEK; THENCE N. 00°03'27" W. ALONG THE EAST LINE OF LOT 9, BLOCK 5, THE POINTE A DISTANCE OF 230.72 FEET TO A POINTE; THENCE N. 00°01'25" E. ALONG SAID EAST LINE A DISTANCE OF 203.59 FEET TO A POINT ON THE SOUTH LINE OF BLOCK 1, THE POINTE 5TH; THENCE S. 89°37'43" E. ALONG THE SOUTH LINE OF BLOCK 1 AND BLOCK 6 OF THE POINTE 5TH A DISTANCE OF 1161.07 FEET TO A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. 41°58'16" W. ALONG SAID WEST LINE A DISTANCE OF 266.69 FEET TO A POINT; THENCE S. 16°42'23" W. ALONG THE SAID WEST LINE A DISTANCE OF 244.42 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 9.78 ACRES MORE OR LESS;

Area #2

PARCELS OF LAND SITUATE IN PORTIONS OF SKYLINE TRACTS, SKYLINE RIDGE SUBDIVISION AND A PARCEL OF LAND SITUATE IN THE E SW OF SECTION 17, 14 SW OF SECTION 17, 14 OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M., AND THOSE PORTIONS OF MARSHALL ROAD, SKYLINE DRIVE, BRIMMER ROAD AND MONTCLAIR DRIVE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: , BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

THE $W\frac{1}{2}$ AND THE $N\frac{1}{2}$ $E\frac{1}{2}$ OF TRACT 1, ALL OF TRACTS 11-16, SKYLINE TRACTS, LOTS 1-2, BLOCK 1, SKYLINE RIDGE SUBDIVISION TOGETHER WITH A PORTION OF UNPLATTED TOGETHER WITH A PORTION OF UNPLATTED A PORTION OF UNPLATTED LAND SITUATE IN THE E SW OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING 14 SW OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING 14 OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING MORE PARTICULARLY DESCRIED AS FOLLOWS: FOLLOWS: BEGINNING AT THE SOUTHEAST CORNER OF LOT 1, BLOCK 1, THE POINTE AND A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. $16^{\circ}41'44''$ W. ALONG THE SAID WEST LINE A DISTANCE OF 580.06 FEET TO A POINT; THENCE S. $16^{\circ}39'05''$ W. CONTINUING ALONG THE SAID WEST LINE A DISTANCE OF 156.50 FEET TO A POINT; THENCE S. $32^{\circ}53'54''$ W. CONTINUING ALONG THE SAID WEST LINE A DISTANCE OF 601.59 FEET TO A POINT ON THE EAST LINE OF BRIMMER ROAD; THENCE N. $00^{\circ}21'06''$ E. ALONG THE SAID WEST LINE OF BRIMMER ROAD A DISTANCE OF 1212.32 FEET TO THE SOUTHWEST CORNER OF SAID LOT 1, BLOCK 1, THE POINTE; THENCE S. $89^{\circ}48'26''$ E. ALONG THE SOUTH LONE OF SAID LOT 1, BLOCK 1, THE POINTE A DISTANCE OF 530.67 FEET TO THE POINT OF BEGINNING. TOGETHER WITH: THOSE PORTIONS OF MARSHALL ROAD, SKYLINE DRIVE, BRIMMER ROAD AND MONTCLAIR DRIVE LYING WITH IN THE BOUNDS OF THIS ANNEXATION BOUNDARY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 50.58 ACRES MORE OR LESS;

Area #3

A PARCEL OF LAND SITUATE IN BLOCK 1, BOURNE SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

ALL OF LOTS 10 & 11, BLOCK 1 AND A PORTION OF A 16' ALLEY ADJACENT TO THE EAST LINES OF SAID LOTS 10 & 11 BEGINNING AT THE EASTERLY EXTENSION OF THE NORTH LINE OF SAID LOT 11 SOUTHERLY TO THE EASTERLY EXTENSION OF THE SOUTH LINE OF LOT 10.

SAID PARCELS CONTAIN 0.43 ACRES OR 18,536 SQUARE FEET MORE OR LESS;

Area #4

A TRACT OF LAND SITUATE IN A PORTION OF NE¼ SE¼, SECTION 13, T. 14 N., R. 67 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE CORNER COMMON TO LOTS 9,10 AND 16, BLOCK 4, BAR X RANCH, 2ND FILING; THENCE N. 89°45'17" E. ALONG THE SOUTH LINE OF SAID LOT 16 A DISTANCE OF 493.57 FEET TO A POINT ON THE WEST LINE OF YELLOWSTONE ROAD; THENCE S. 00°14'19" E. ALONG THE SAID WEST LINE A DISTANCE OF 439.51 FEET TO A POINT NORTHEAST CORNER OF ENCLAVE AT NORTHGATE SUBDIVISION; THENCE S. 89°45'41" W. ALONG THE NORTH LINE OF SAID ENCLAVE AT NORTHGATE SUBDIVISION AND CHEYENNE NORTH 2ND FILING A DISTANCE OF 494.72 FEET TO A POINT; THENCE S. 00°05'18" E. ALONG THE EAST LINE OF SAID NORTH CHEYENNE, 2ND & 3RD FILINGS A DISTANCE OF 439.45 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 4.99 ACRES OR 217,168 SQUARE FEET MORE OR LESS;

Area #5

A PARCEL OF LAND SITUATE IN A PORTION OF TRACT 10, STOREY ACRES, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE SOUTH LINE OF SAID TRACT 10 SAID POINT BEARS N. 90°00'00" E. A DISTANCE OF 217.60 FEET FROM THE SOUTHWEST CORNER OF SAID TRACT 10; THENCE N. 00°00' 00' E. A DISTANCE OF 150.05 FEET TO A POINT; THENCE N. 89°57'28" W. A DISTANCE OF 55.60 FEET TO A POINT; THENCE N. 00°00'00" E. A DISTANCE OF 166.70 FEET TO A POINT ON THE SOUTH LINE OF KORNEGAY HOMESITES, 2ND FILING; THENCE S. 89°59'15" E. ALONG THE SAID SOUTH LINE A DISTANCE OF 358.80 FEET TO A POINT ALSO BEING THE NORTHWEST CORNER

OF MILLER ADDITION; THENCE S. 00°00'00" E. ALONG THE WEST LINE OF SAID MILLER ADDITION A DISTANCE OF 136.78 FEET TO A POINT; THENCE N. 89°59'15" W. A DISTANCE OF 140.00 FEET TO A POINT; THENCE S. 00°00'00" E. A DISTANCE OF 179.97 FEET TO A POINT ON THE NORTH LINE OF EAST CARLSON STREET; THENCE N. 90°00'00" W. A DISTANCE OF 163.20 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 1.84 ACRES OR 80,114 SQUARE FEET MORE OR LESS;

Area #6

A PARCEL OF LAND SITUATE IN A PORTION OF THE E½ W½ W½ NE¼ SW¼, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF BLOCK 1, GRAND PRE CIRCLE; THENCE N. 00°03' 00" E. A DISTANCE OF 658.90 FEET TO A POINT ON THE SOUTH LINE OF SMALLEY PARK, SPRING VALLEY ADDITION; THENCE S. 85°52'49" E. A DISTANCE OF 165.59 FEET TO THE SOUTHEAST CORNER OF SAID SMALLEY PARK AND THE NORTHWEST CORNER OF THE PARK PARCEL, REDMOND ADDITION; THENCE S. 00°02'00" W. ALONG THE WEST LINE OF SAID REDMOND ADDITION A DISTANCE OF 658.12 FEET TO A POINT; THENCE S. 89°51'00" W. A DISTANCE OF 165.78 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS;

Area #7

A PARCEL OF LAND SITUATE IN A PORTION OF THE NW¼ SE¼ AND A PORTION OF PRAIRIE AVENUE, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF LOT 11, BLOCK 19, INDIAN HILLS, 3RD FILING ALSO BEING A POINT OF THE NORTH LINE OF PRAIRIE AVENUE; THENCE N. 89°57'49" E. ALONG THE SAID NORTH LINE OF PRAIRIE AVENUE A DISTANCE OF 593.17 FEET TO THE SOUTHEAST CORNER OF FLOHR SUBDIVISION; THENCE N. 00°02'15" W. A DISTANCE OF 110.99 FEET TO THE NORTHEAST CORNER OF SAID FLOHR; THENCE S. 89°57'45" W.

ALONG THE NORTH LINE OF SAID FLOHR A DISTANCE OF 80.00 FEET TO A POINT; THENCE S. 00°02'15" E. A DISTANCE OF 23.00 FEET TO A POINT; THENCE S. 89°57'45" E. A DISTANCE OF 64.88 FEET TO A POINT ON THE EAST LINE OF MYLAR ADDITION; THENCE N. 00°02'15" W. ALONG THE SAID EAST LINE A DISTANCE OF 12.00 FEET TO THE NORTHEAST CORNER OF SAID MYLAR ADDITION; THENCE S. 89°57'45" W. ALONG THE NORTH LINE OF SAID MYLAR ADDITION A DISTANCE OF 75.00 FEET TO THE NORTHWEST CORNER OF SAID MYLAR ADDITION ALSO BEING A POINT ON THE EAST LINE OF MYLAR ADDITION, 2ND FILING; THENCE N. 00°02'15" W. ALONG THE EAST LINE OF SAID MYLAR ADDITION, 2ND FILING AND DRY CREEK SOUTH, "REFINEMENT A" A DISTANCE OF 150.00 FEET TO THE NORTHEAST CORNER OF LOT 9, OF SAID DRY CREEK SOUTH, "REFINEMENT A" ALSO BEING A POINT ON THE SOUTH LINE OF MYLAR PARK; THENCE N. 89°57'45' E. ALONG THE SOUTH LINE OF SAID MYLAR PARK A DISTANCE OF 82.96 FEET TO A POINT; THENCE S. 49°30'15' E. ALONG THE SAID SOUTH LINE A DISTANCE OF 230.73 FEET TO A POINT; THENCE N. 89°57'12' E. ALONG THE SOUTH LINE OF SAID MYLAR PARK A DISTANCE OF 355.15 FEET TO THE NORTHWEST CORNER OF LOT 1, BLOCK 1, MYLAR PARK ADDITION, 2ND FILING; THENCE S. 00°16'46' W. ALONG THE WEST LINE OF SAID MYLAR PARK ADDITION, 2ND FILING A DISTANCE OF 100.11 FEET TO THE SOUTHWEST CORNER OF SAID ADDITION AND ALSO A POINT ON THE NORTH LINE OF SAID PRAIRIE AVENUE; THENCE S. 89°44'02' E. ALONG THE SOUTH LINE OF SAID ADDITION A DISTANCE OF 20.00 FEET TO THE SOUTHEAST CORNER OF SAID ADDITION; THENCE S. 00°16' 46' W. ALONG THE SOUTHERLY EXTENSION OF THE EAST LINE OF SAID MYLAR PARK ADDITION, 2ND FILING A DISTANCE OF 60.00 FEET TO A POINT ON THE SOUTH LINE OF SAID PRAIRIE AVENUE; THENCE S. 89°57'49" W. ALONG SAID SOUTH LINE A DISTANCE OF 1005.95 FEET TO THE INTERSECTION OF SOUTHERLY EXTENSION OF THE EAST LINE OF LOT 11, BLOCK 19, INDIAN HILLS, 3RD FILING AND THE SAID SOUTH LINE OF PRAIRIE AVENUE; THENCE N. 00°02'09' E. ALONG THE SAID SOUTHERLY EXTENSION LINE A DISTANCE OF 60.00 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 2.88 ACRES OR 125,222 SQUARE FEET MORE OR LESS;

Area #8

PARCELS OF LAND SITUATE IN BLOCK 14, BLOCK 15, BLOCK 16, BLOCK 17, BLOCK 18, NORTH CHEYENNE, 2ND FILING AND BLOCK 1,

NORTH CHEYENNE, 5TH FILING, AND PORTIONS OF PRAIRIE HILLS DRIVE, SIOUX DRIVE, A 16' ALLEY AND ALL OF CHEROKEE STREET, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

ALL OF LOTS 6-9, BLOCK 14, LOTS 6-9, BLOCK 15, LOTS 1-15, BLOCK 16, LOTS 6-8, BLOCK 17, LOTS 1-3, BLOCK 18, NORTH CHEYENNE, 2ND FILING AND LOTS 1-3, BLOCK 1, NORTH CHEYENNE, 5TH FILING, AND THOSE PORTIONS OF PRAIRIE HILLS DRIVE, SIOUX DRIVE, THAT PORTION OF A 16' ALLEY ADJACENT TO LOTS 6-9, BLOCK 15, CHEYENNE NORTH, 2ND FILING AND LOTS 1-3, BLOCK 1, CHEYENNE NORTH, 5TH FILING AND ALL OF CHEROKEE STREET WITHIN THE BOUNDS OF THIS ANNEXATION BOUNDARY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS;

Area #9

A PARCEL OF LAND SITUATE IN THE S SE, SECTION 19, T. 14 N., R. 66 W., 12 SE, SECTION 19, T. 14 N., R. 66 W., 14, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING BEING MORE BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF NIMMO ADDITION AND CONTINUING ALONG THE WEST AND SOUTHERLY BOUNDARY OF SAID NIMMO ADDITION THROUGH THE NEXT 8 COURSES; THENCE S. 00°01' 00" E. ALONG THE WEST LINE A DISTANCE OF 124.00 FEET TO A POINT; THENCE S. 09°29'00" W. A DISTANCE OF 35.80 FEET TO A POINT; THENCE THROUGH A CURVE CONCAVED TO THE EAST HAVING A RADIUS OF 50.00 FEET A CENTRAL ANGLE OF 120°35'03 (ChB.-S. 09°29'01" W., ChL.-86.86') A DISTANCE OF 105.23 FEET TO A POINT; THENCE S. 50°48'30" E. A DISTANCE OF 540.52 FEET TO A POINT; THENCE S. 89°45'00" E. A DISTANCE OF 168.73 FEET TO A POINT; THENCE S. 58°33'30" E. A DISTANCE OF 153.53 FEET TO A POINT; THENCE N. 31°26'30" E. A DISTANCE OF 125.00 TO A POINT; THENCE S. 58°33'30" E. A DISTANCE OF 300.00 FEET TO A POINT; THENCE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 230.00 FEET A CENTRAL ANGLE OF 31°29'58 (ChB.-S. 74°18'30" W., ChL.-124.86') A DISTANCE OF 126.45 FEET TO A POINT; THENCE N. 89°56'30" E. A DISTANCE OF 126.93 FEET TO THE SOUTHEAST CORNER OF SAID NIMMO ADDITION ALSO BEING A POINT ON THE WEST LINE OF POWDERHOUSE

ROAD; THENCE S. 00°09'36" W. ALONG THE SAID WEST LINE OF A DISTANCE OF 195.90 FEET TO THE INTERSECTION OF THE SAID WEST LINE OF POWDERHOUSE ROAD AND THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE S. 44°41'41" W. ALONG THE SAID NORTH LINE A DISTANCE OF 260.75 FEET TO A POINT; THENCE CONTINUING ALONG THE SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 2181.83 FEET A CENTRAL ANGLE OF 02°29'58 (ChB.-N. 72°20'14" W., ChL.-95.17') A DISTANCE OF 95.18 FEET TO A POINT; THENCE S. 18°37'03" W. CONTINUING ALONG THE SAID NORTH LINE A DISTANCE OF 24.92 FEET TO A POINT; THENCE CONTINUING ALONG THE SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 2206.83 FEET A CENTRAL ANGLE OF 09°34'35 (ChB.-N. 66°37'13" W., ChL.-368.42') A DISTANCE OF 368.85 FEET TO THE SOUTHEAST CORNER OF LOT 1, BLOCK 3, CHEYENNE AIRPORT ADDITION; THENCE N. 00°12'55" E. ALONG THE WEST LINE OF SAID LOT 1 A DISTANCE OF 310.24 FEET TO THE NORTHEAST CORNER OF SAID LOT 1; THENCE N. 89°52'39" W. A DISTANCE OF 438.66 FEET TO THE NORTHWEST CORNER OF SAID LOT 1 ALSO BEING A POINT OF THE NORTH LINE OF SAID DELL RANGE BOULEVARD; THENCE N. 48°19'00" W. ALONG SAID NORTH LINE A DISTANCE OF 497.28 FEET TO THE SOUTHERLY CORNER OF LOT 1, BLOCK 2, CHEYENNE AIRPORT ADDITION; THENCE S. 89°49'25" E. ALONG THE SOUTH LINE OF SAID LOT 1, BLOCK 2 A DISTANCE OF 150.78 FEET TO A POINT; THENCE S. 89°49'25" E. ALONG THE EAST LINE OF SAID LOT 1, BLOCK 2 A DISTANCE OF 330.33 FEET TO THE NORTHEAST CORNER OF SAID LOT 1, BLOCK 1 ALSO BEING A POINT ON THE SOUTH LINE OF PRAIRIE AVENUE; THENCE S. 89°38'36" E. ALONG SAID SOUTH LINE A DISTANCE OF 195.17 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 10.32 ACRES MORE OR LESS;

- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is considered contiguous to the City of Cheyenne according to the provisions of Wyo. Stat. § 15-1-402 (b) and is currently zoned X Exempt by the

Laramie County Commissioners; and

- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to Wyo. Stat. § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Section 1(b) of this Ordinance is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That pursuant to Wyoming Statute § 15-1-405, the Governing Body held a public hearing on November 13, 2023, on the proposed and annexation and found that the annexation complied Wyo. Stat. § 15-1-402.

Section 4. That the map of the area to be annexed is shown in Exhibit A, which is attached hereto and incorporated herein, satisfies the requirements of Wyo. Stat. § 15-1-406 and shall be recorded with the county clerk in conjunction with this ordinance.

Section 5. That the City Clerk is directed to file an executed copy of this annexation ordinance with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 7. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

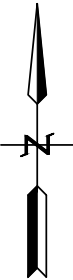
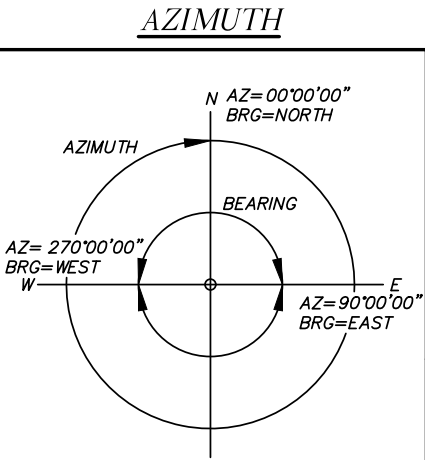
KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

(EXHIBIT "A")
ANNEXATION MAPS
FOR
VARIOUS COUNTY POCKETS SITUATE IN NORTHWEST CHEYENNE
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING



VICINITY MAP
NOT TO SCALE



FILING RECORD

APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS
_____ DAY OF _____, 2023.

MAYOR – PATRICK COLLINS

ATTEST: _____
CITY CLERK – KRISTINA F. JONES

NOTES

1. DISTANCES SHOWN ON THE ANNEXATION MAP ARE GROUND DISTANCE.
2. THE AREA WITHIN THE HEAVY BOUNDARY IS CURRENTLY A COUNTY POCKET. ALL AREAS OUTSIDE THE BOUNDARY ARE WITHIN THE LIMITS OF THE CITY OF CHEYENNE.
3. LENGTH OF THE PARCEL BOUNDARY ABUTTING THE CITY LIMITS – 29,097' (ALL SIDES OF THE PARCELS AS SHOWN ARE BOUNDED BY THE CITY LIMITS.
4. RATIO OF THE BOUNDARY ABUTTING THE CITY LIMITS –100% OF THE TOTAL
5. CERTAIN POCKET PARCELS ARE DEPICTED FROM MAPS, PLATS AND DEEDS OF RECORD AND WERE NOT DETERMINED FROM ACTUAL FIELD SURVEYS.

SURVEYORS CERTIFICATE

I, COTTON D. JONES, A REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE THAT THESE ANNEXATION MAPS WERE PREPARED FROM OFFICIAL PLATS AND DEEDS OF RECORD AND/OR FROM NOTES OF A FIELD SURVEY CONDUCTED BY MYSELF AND UNDER MY DIRECT SUPERVISION DURING THE MONTHS OF MAY–JULY, 2023, THAT THE MONUMENTS ARE SET OR FOUND AS SHOWN AND THAT THESE MAPS CORRECTLY REPRESENT SAID SURVEYS AND MAP AND DEED DESCRIPTIONS OF THE LANDS DEPICTED HEREON TO THE BEST OF MY KNOWLEDGE.

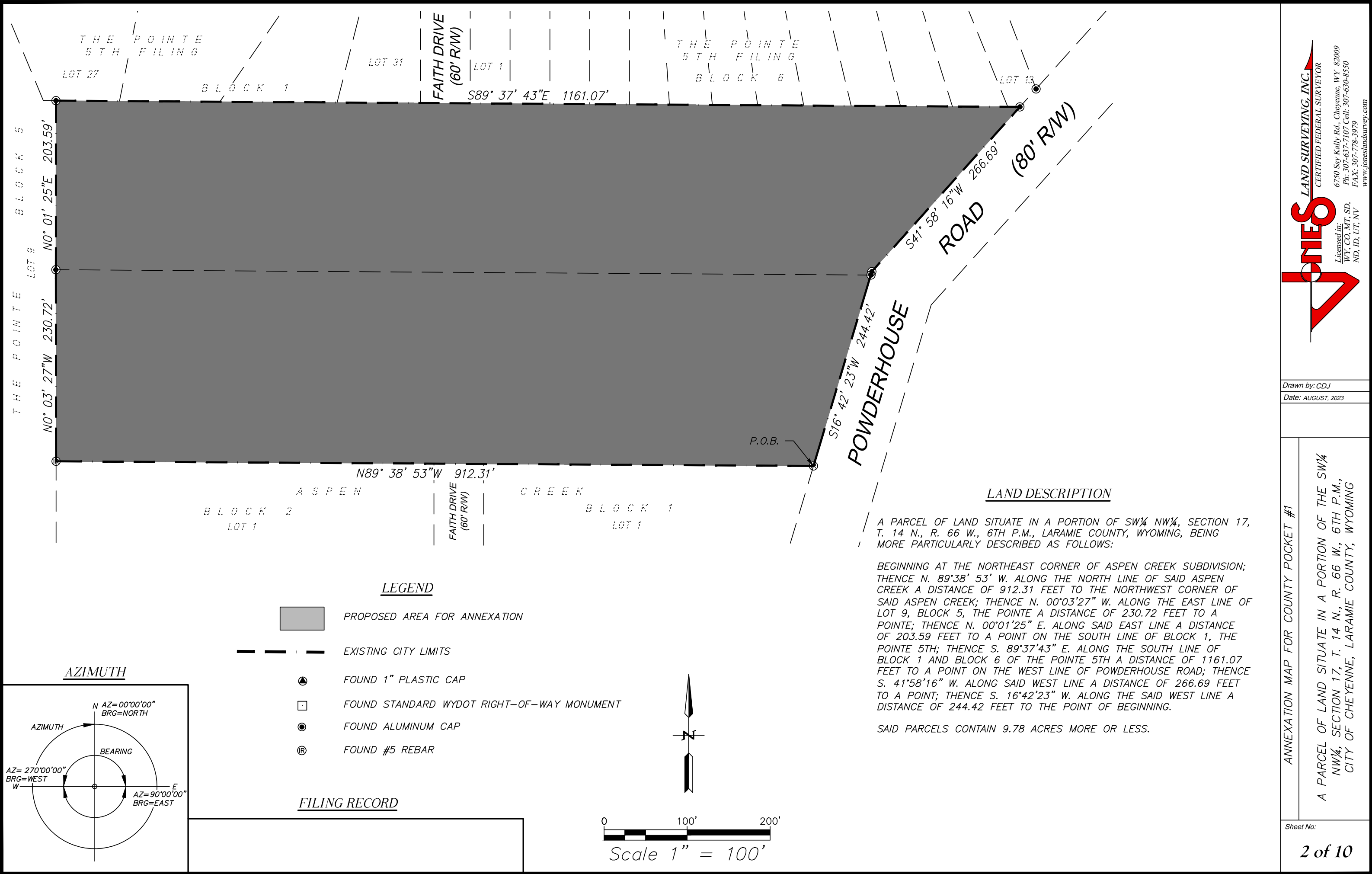
COTTON D. JONES
LAND SURVEYING, INC.
CERTIFIED FEDERAL SURVEYOR
6750 Say Kally Rd., Cheyenne, WY 82009
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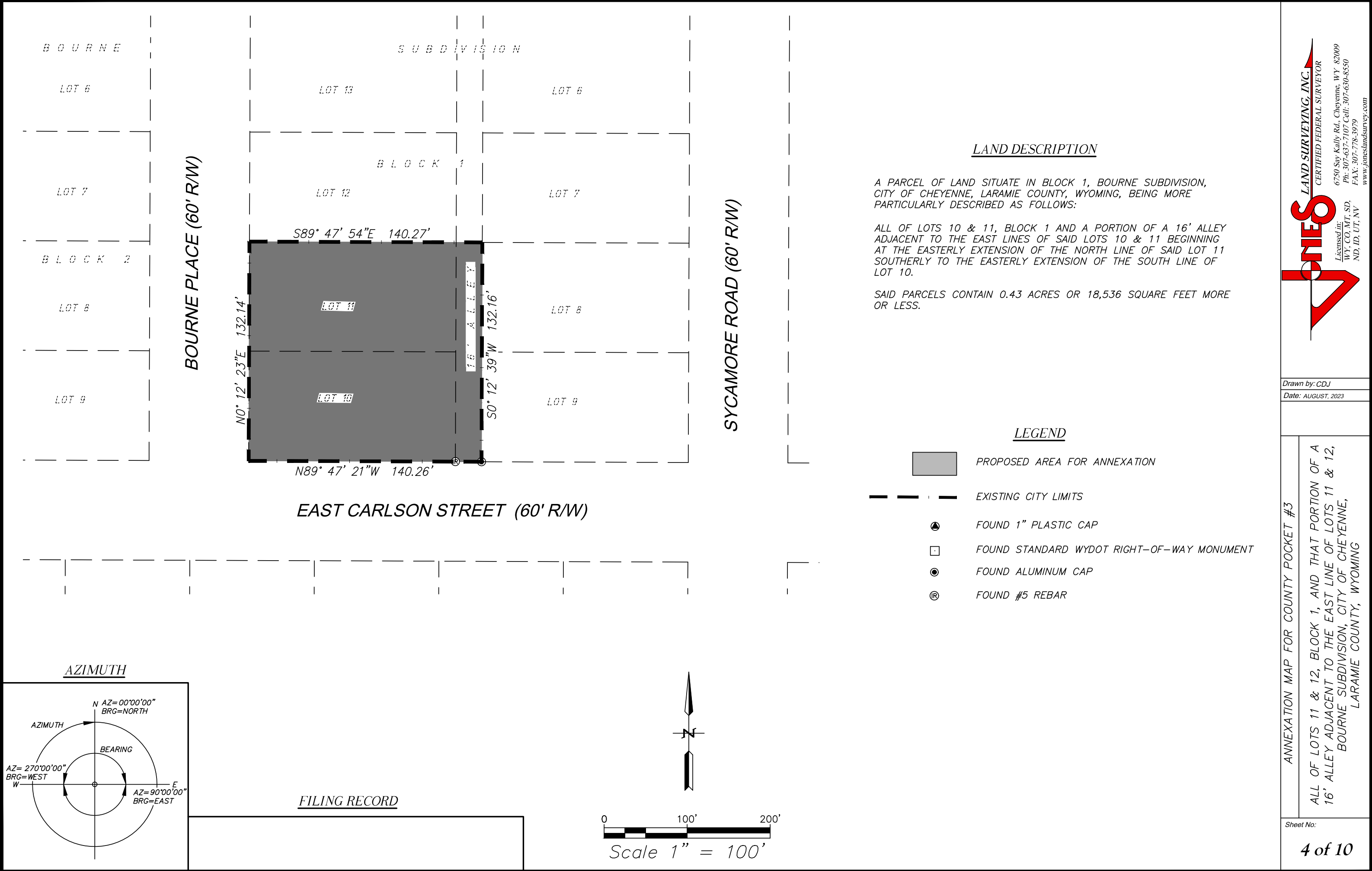
Licensed in:
WY, CO, MT, SD,
ND, ID, UT, NV

Drawn by: CDJ
Date: AUGUST, 2023

ANNEXATION MAPS FOR VARIOUS COUNTY POCKETS
FOR PARCELS OF LAND SITUATE IN PORTIONS OF SECTIONS
17, 18 AND 19, T. 14 N., R. 66 W. AND SECTION 13, T14 N.,
R. 67 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY,
WYOMING

Sheet No:

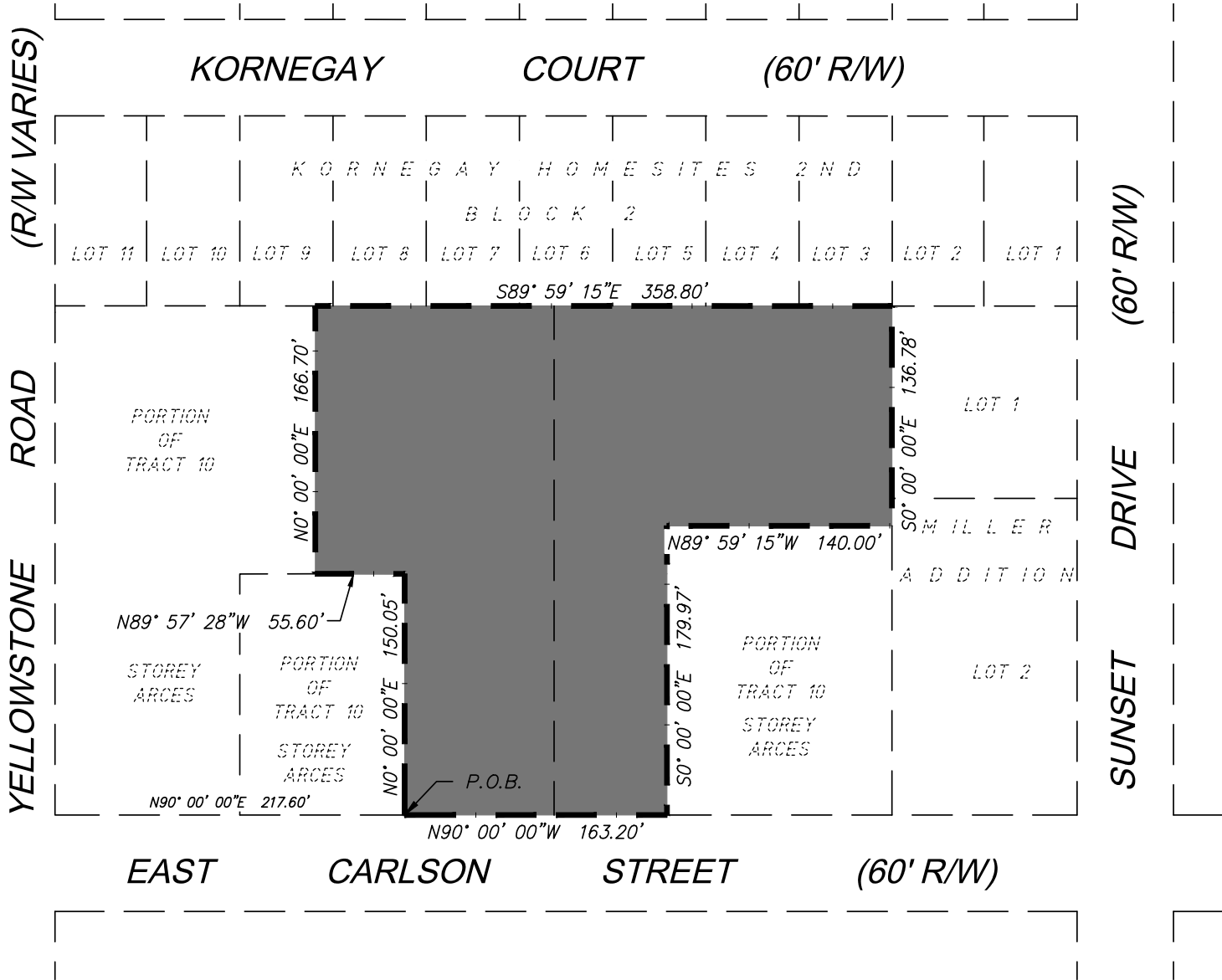




Drawn by: CDJ
Date: AUGUST, 2023

ANNEXATION MAP FOR COUNTY POCKET #3

ALL OF LOTS 11 & 12, BLOCK 1, AND THAT PORTION OF A 16' ALLEY ADJACENT TO THE EAST LINE OF LOTS 11 & 12, BOURNE SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING



LAND DESCRIPTION

A PARCEL OF LAND SITUATE IN A PORTION OF TRACT 10, STOREY ACRES, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

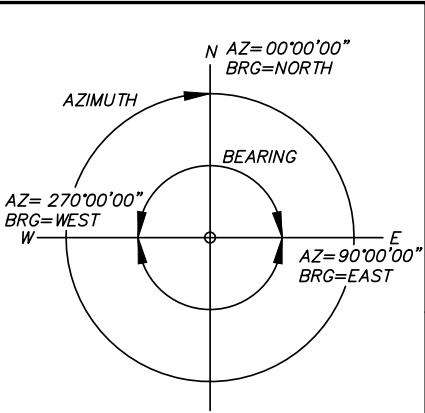
BEGINNING AT A POINT ON THE SOUTH LINE OF SAID TRACT 10 SAID POINT BEARS N. 90°00'00" E. A DISTANCE OF 217.60 FEET FROM THE SOUTHWEST CORNER OF SAID TRACT 10; THENCE N. 00°00' 00' E. A DISTANCE OF 150.05 FEET TO A POINT; THENCE N. 89°57'28" W. A DISTANCE OF 55.60 FEET TO A POINT; THENCE N. 00°00'00" E. A DISTANCE OF 166.70 FEET TO A POINT ON THE SOUTH LINE OF KORNEGAY HOMESITES, 2ND FILING; THENCE S. 89°59'15" E. ALONG THE SAID SOUTH LINE A DISTANCE OF 358.80 FEET TO A POINT ALSO BEING THE NORTHWEST CORNER OF MILLER ADDITION; THENCE S. 00°00'00" E. ALONG THE WEST LINE OF SAID MILLER ADDITION A DISTANCE OF 136.78 FEET TO A POINT; THENCE N. 89°59'15" W. A DISTANCE OF 140.00 FEET TO A POINT; THENCE S. 00°00'00" E. A DISTANCE OF 179.97 FEET TO A POINT ON THE NORTH LINE OF EAST CARLSON STREET; THENCE N. 90°00'00" W. A DISTANCE OF 163.20 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 1.84 ACRES OR 80,114 SQUARE FEET MORE OR LESS.

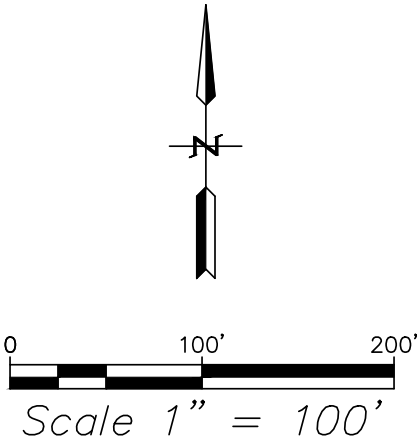
LEGEND

-  PROPOSED AREA FOR ANNEXATION
-  EXISTING CITY LIMITS
-  FOUND 1" PLASTIC CAP
-  FOUND STANDARD WYDOT RIGHT-OF-WAY MONUMENT
-  FOUND ALUMINUM CAP
-  FOUND #5 REBAR

AZIMUTH



FILING RECORD

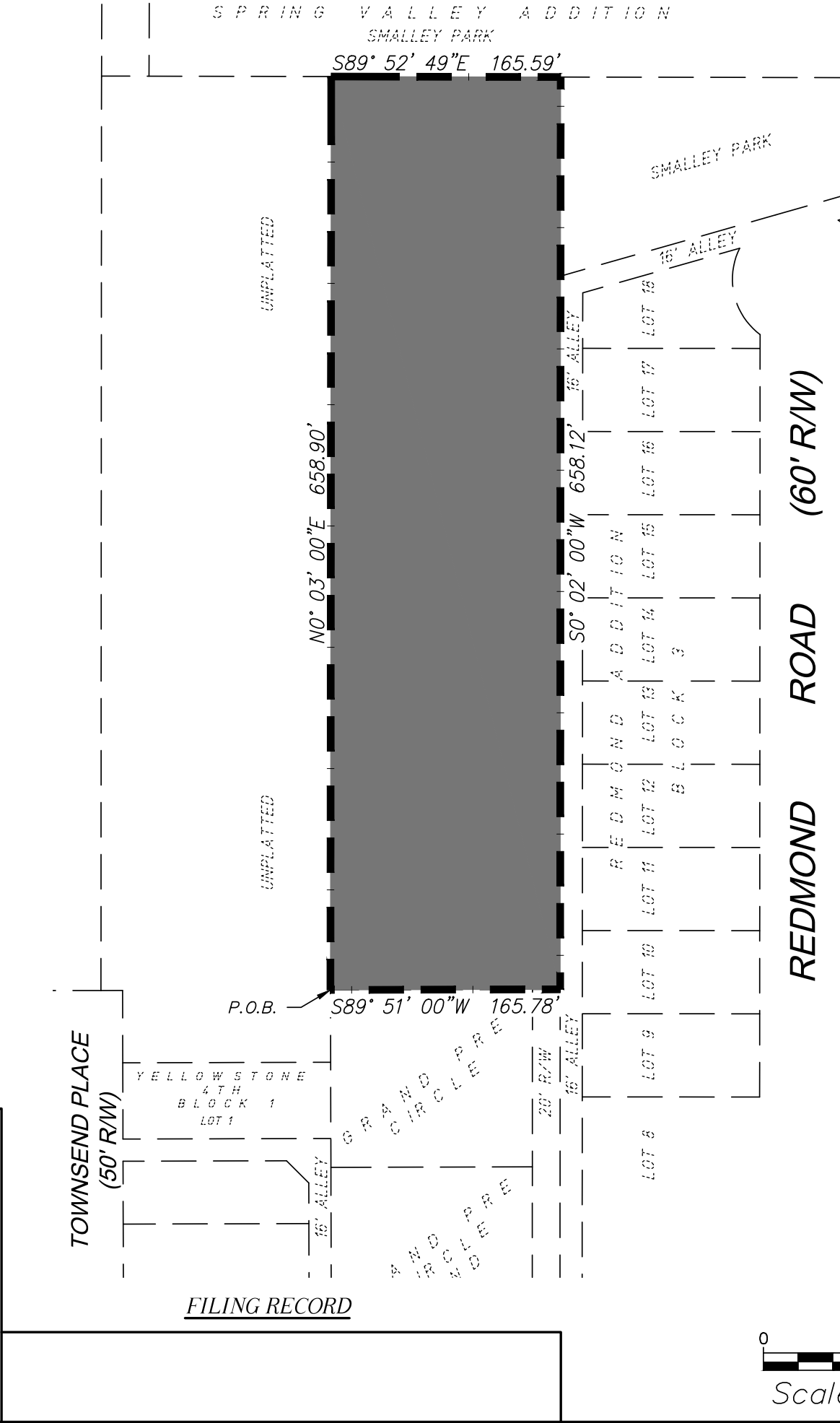
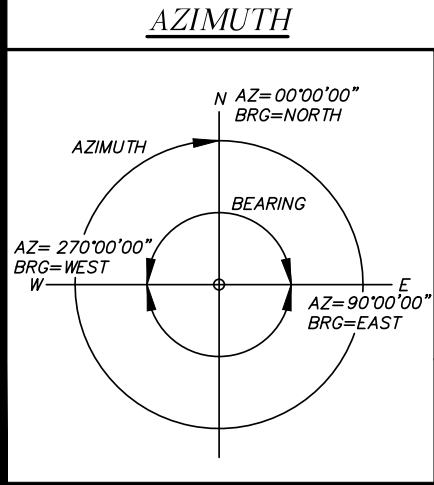


ANNEXATION MAP FOR COUNTY POCKET #5

A PARCEL OF LAND SITUATE IN A PORTION OF TRACT 10, STOREY ACRES, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

Sheet No:

Drawn by: CDJ
Date: AUGUST, 2023



LAND DESCRIPTION

A PARCEL OF LAND SITUATE IN A PORTION OF THE E½ W½ W½ NE¼ SW¼, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF BLOCK 1, GRAND PRE CIRCLE; THENCE N. 00°03' 00" E. A DISTANCE OF 658.90 FEET TO A POINT ON THE SOUTH LINE OF SMALLEY PARK, SPRING VALLEY ADDITION; THENCE S. 85°52'49" E. A DISTANCE OF 165.59 FEET TO THE SOUTHEAST CORNER OF SAID SMALLEY PARK AND THE NORTHWEST CORNER OF THE PARK PARCEL, REDMOND ADDITION; THENCE S. 00°02'00" W. ALONG THE WEST LINE OF SAID REDMOND ADDITION A DISTANCE OF 658.12 FEET TO A POINT; THENCE S. 89°51'00" W. A DISTANCE OF 165.78 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS.

- LEGEND
- PROPOSED AREA FOR ANNEXATION
 - EXISTING CITY LIMITS
 - FOUND 1" PLASTIC CAP
 - FOUND STANDARD WYDOT RIGHT-OF-WAY MONUMENT
 - FOUND ALUMINUM CAP
 - FOUND #5 REBAR

